

ACCIDENT REPORT

K-WC 1101-A (Rev. 10-13)

– SEE INSTRUCTIONS ON PAGE 2 –

There is a \$250 penalty for repeated failure to file accident reports within 28 days of the date the employer is informed of the accident. **Submission does not constitute admission of liability.**

Send this completed form to your insurer, third party administrator or pool association for submission electronically to the Division of Workers Compensation.

Direct questions or comments to:
Toll free (800) 332-0353

OSHA Case or File Number _____

1. Federal Employer's Identification Number 91-6041234 Date of hire 2021-06-07
2. Name of employer Pacific Logistics LLC Phone (206) 555-0128
3. Mailing address 1301 4th Ave, Suite 2100, Seattle, WA 98101
Street City State ZIP
4. Location, if different from mailing address 2600 W Commodore Way, Seattle, WA 98199
Street City State ZIP
5. Nature of business Warehousing and Distribution NAICS or S.I.C. Code 493110 Dept. or division Warehouse Operations
6. Name of employee John A. Doe Age 33 Sex Male
First Middle Last
7. Home address 7422 Greenwood Ave N, Apt 313 Seattle WA 98103
Street City State ZIP
8. SSN 987-65-4320 Birth date 1990-05-02 Employee's occupation Warehouse Associate Home phone (206) 555-0183
City County State
9. Date of injury or occupational disease 2023-11-14 Time of injury 9:20 a.m. / p.m.
Date reported to employer 2023-11-14 Date disability began 2023-11-15 Gross average weekly wage \$ 900
10. Place of accident or last exposure Seattle King WA
City County State
11. Was accident or last exposure on employer's premises? ☒ YES ☐ NO
12. How did accident occur? While moving a loaded pallet jack across the loading dock the employee stepped on a wet spot, and fell, striking his left forearm on the jack handle and twisting his lower back.
13. What was employee doing when injured? Transporting shrink-wrapped pallets from the warehouse to the loading dock using a manual pallet jack.
14. Name substance or object that directly caused injury* Wet concrete floor and manual pallet jack
15. Describe in detail nature and extent of injury, indicate part of body involved* Acute lumbar strain with muscle spasm and contusion to the left forearm. Palm rated 6/10 with decreased range of motion; no fracture on X-ray
16. Was worker admitted to hospital? ☐ YES ☒ NO Date _____ Treated by emergency room only? ☒ YES ☐ NO
Hospital name and address Harborview Medical Center Emergency Department, 352 9th Ave, Seattle, WA 98104
17. Name and address of attending physician or clinic Dr. Karen Smith, Harborview Occupational Clinic, 401 Broadway, Suite 202 Seattle, WA 98122
18. Has employee returned to regular duty? ☒ YES ☐ NO Light duty? ☒ YES ☐ NO Date 2023-11-16
19. Is compensation now being paid? ☐ YES ☒ NO Date first/initial payment _____
20. Weekly compensation rate \$ 0.00 Is further medical aid needed? ☒ YES ☐ NO ☐ UNKNOWN
21. Did employee die? ☐ YES ☒ NO If YES, give date of death _____ (File amended report within 28 days if death subsequently occurs.)
22. Name(s) and address(es) of dependents (death cases only) _____
23. Insurance carrier and third party administrator Acme Insurance Company
Address 500 Pine St Seattle WA 98101 Phone (206) 555-0199
Street City State ZIP
Policy number POL123456789 Name of agent Michael Turner
Claim number CLM-2023-11-00127 Name of claim representative Sara Patel
24. Date of report 2023-11-15 Completed by Laura Chen Title HR Manager

FOR
OFFICE
USE

COUNTY

CAUSE

NATURE

SEVERITY

NO TIME LOST
1 - TIME LOST
2 - MEDICAL
3 - FATAL

SOURCE

MEMBER

Instructions

You must answer every question; failure to answer all questions may cause the report to be returned to the employer. Returned accident reports may cause a delay of benefits to the injured employees and could subject the employer to fines.

The employer must send this accident report to its insurance carrier, third party administrator or pool association for electronic submission to the Kansas Department of Labor Division of Workers Compensation.

*Instructions for Questions 14 and 15

14: Name the object or substance which directly injured the employee. Example: machine or object employee struck or struck employee; vapor or poison employee inhaled or swallowed; chemicals or radiation which irritated employee's skin; if hernia, the object employee was lifting or pulling; etc.

15: Be as specific as possible indicating all that is known about the injury. Name the part of body injured.

Definition of an Incapacitating Injury

The Workers' Compensation Act sets forth a strict time frame for filing accident reports with the division. The controlling statute is K.S.A. 44-557(a), which reads as follows:

(a) it is hereby made the duty of every employer to make or cause to be made a report to the director of any accident, or claimed or alleged accident, to any employee which occurs in the course of the employee's employment and of which the employer or the employer's supervisor has knowledge, which report shall be made upon a form to be prepared by the director, within 28 days, after the receipt of such knowledge, if the personal injuries which are sustained by such accidents are sufficient wholly or partially to incapacitate the person injured from labor or service for more than the remainder of the day, shift or turn on which such injuries were sustained.

Accident reports are not required for every work-related injury. The statute requires a report to be filed when the worker's whole or partial incapacity continues beyond the "day, turn, or shift which such injuries are sustained" as the result of accident. "Incapacity" is not specifically defined within the law, but the division believes that the Legislature's intent was to reference a worker's whole or partial loss of the ability to perform his or her ordinary job tasks. When in doubt, keep in mind the law contains no penalty for filing a report that ultimately proves to be unnecessary. **There are penalties, however, for failing to file a report when one was required.** The penalties include fines and limitations on the defenses the employer may assert if a claim is filed.

OSHA Recordkeeping

The employer must complete an Injury and Illness Incident Report, OSHA Form 301, within seven (7) days of learning that a work-related injury or illness has occurred. According to OSHA's recordkeeping rule, you must keep Form 301, or an equivalent substitute on file for five (5) years.

To learn more about OSHA's recordkeeping requirements and download forms, visit:
www.osha.gov/recordkeeping/RKforms.html